City of Pembroke Pines, FL

City of Pembroke Pines
Charles F. Dodge City Center
601 City Center Way
Pembroke Pines, FL 33025

Meeting Minutes

Wednesday, December 15, 2021

6:30 PM

6:30 PM Public Hearing-CAPER 2020. 6:30 PM (or at such time as Public Hearing adjourns) Regular Commission Meeting. BA-1 Board Announcement item added to agenda and republished.

Commission Chambers

City Commission

Mayor Frank C. Ortis
Vice Mayor Thomas Good, Jr.
Commissioner Angelo Castillo
Commissioner Iris A. Siple
Commissioner Jay D. Schwartz

5:30 PM SHADE SESSION (Conference Room A-101)

ROLL CALL

Present 1 - Mayor Frank Ortis

Also present: City Manager Charles Dodge, City Attorney Samuel Goren, Assistant City Attorney Jacob Horowitz, and City Clerk Marlene Graham.

5:30 PM PUBLIC PORTION OF SHADE SESSION CALLED TO ORDER

MEMBERS OF THE PEMBROKE PINES CITY COMMISSION, CITY MANAGER, CITY ATTORNEY SAMUEL S. GOREN, ASSISTANT CITY ATTORNEY JACOB HOROWITZ, NEDA GHOMESHI, ESQ, ASSOCIATE ATTORNEY WITH AKERMAN LLP AND SPECIAL COUNSEL CINDY LAQUIDARA, ESQ., WITH AKERMAN LLP, PARTICIPATING VIA WEBEX PHONE LINK, WILL MEET IN A SHADE SESSION PURSUANT TO SECTION 286.011(8), F.S., TO DISCUSS PENDING LITIGATION IN THE CASE OF CITY OF PEMBROKE PINES V. CITY OF HOLLYWOOD, BROWARD COUNTY CIRCUIT COURT CASE NO. CACE18015330. (CONSOLIDATED WITH CASE NO. 01-014030 AND CASE NO. 18-002017).

City Attorney Goren called the public portion of the Shade Session to order.

Mr. Goren introduced the participants appearing remotely via Webex: Special Counsel Cindy Laquidara, Esq. of Akerman LLP, law partner William Handle, Esq. of the Akerman LLP law firm, and Court Reporter Stacy Raub. Dialing in to the meeting: Arthur Koski, Esq. of the Koski Law Firm in Boca Raton.

Vice Mayor Good accessed the Shade Session by phone until he arrived at approximately 6:00 PM.

Mayor Ortis recessed the public portion of the Shade Session.

The public portion of the Shade Session resumed. Mayor Ortis adjourned the public portion of the Shade Session at 6:30 PM.

PUBLIC PORTION OF THE SHADE SESSION ADJOURNS

6:30 PM PUBLIC HEARING (Commission Chambers)

ROLL CALL

Present 1 - Mayor Frank Ortis

Also present: City Manager Charles F. Dodge, City Attorney Samuel S. Goren, and City Clerk Marlene D. Graham.

OPEN PUBLIC HEARING

PH-1 **21-1106** **PUBLIC HEARING:** PH-1: THE PURPOSE OF THIS PUBLIC HEARING IS TO RECEIVE PUBLIC COMMENT ON THE CONSOLIDATED ANNUAL PERFORMANCE EVALUATION REPORT ("CAPER - FISCAL YEAR 2020")

MOTION TO ADOPT PROPOSED RESOLUTION 2021-R-58. PROPOSED RESOLUTION 2021-R-58 IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, APPROVING THE PROGRAM YEAR 2020 CONSOLIDATED ANNUAL PERFORMANCE EVALUATION REPORT (CAPER) FOR COMMUNITY DEVELOPMENT BLOCK GRANT PROGRAMS; PROVIDING FOR RECORDATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE.

PROPOSED RESOLUTION 2021-R-58 IS ITEM # 19 ON THE AGENDA.

City Attorney Goren read the public hearing item PH-01 into the record by title.

Mayor Ortis opened the public hearing.

No members of the public spoke on the item.

Mayor Ortis closed the public hearing.

ADJOURN PUBLIC HEARING

6:30 PM (or at such time as Public Hearing adjourns) REGULAR MEETING CALLED TO ORDER

ROLL CALL

Present 1 - Mayor Frank Ortis

Also present: City Manager Charles F. Dodge, City Attorney Samuel S. Goren, and City Clerk Marlene D. Graham.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Mayor Ortis.

PRESENTATIONS:

PRE-1 21-1098 PRESENTATION NO.1: THE COMMISSION AUDITOR WILL PRESENT THE RISK ASSESSMENT AND AUDIT PLAN FOR FY 2022.

City Commission Auditor Eddy Castaneda presented an overview of the audit plan for fiscal year 2022, referencing several key points of the audit plan; prioritize projects, risk analysis recommendations, review of large contracts for compliance; changes to financial accounting and reporting, changes to economic conditions, any changes to the Florida Statutes/laws, and the evaluation of the last time an item was reviewed.

Mr. Castaneda addressed the questions and concerns of the Commission.

City Manager Dodge said that the appropriate time to review issues and items would be during the normal budget process time-frame October 1, 2022-2023.

PRE-2 21-1095 PRESENTATION NO.2: SHWANDA BARNETTE FROM THE FLORIDA LEAGUE OF CITIES WILL PRESENT MAYOR FRANK C. ORTIS WITH

THE "MAYOR JOHN LAND YEARS OF SERVICE AWARD" IN HONOR OF HIS 25 YEARS OF DEDICATED PUBLIC SERVICE.

Ms. Shwanda Barnett from the Florida League of Cities presented Mayor Frank C. Ortis with the John Land Service Award plaque to honor his 25 years of participation at the Florida League of Cities.

Mayor Ortis thanked Ms. Barnett for the honor.

Commissioner Siple, Commissioner Schwartz, Vice Mayor Good, and Commissioner Castillo each congratulated Mayor Ortis for his accomplishments.

PRE-3 21-1111 PRESENTATION NO.3: MAYOR ORTIS WILL PRESENT A PROCLAMATION TO JAMES RYAN IN APPRECIATION OF HIS MANY YEARS OF VOLUNTEER SERVICE TO THE CITY OF PEMBROKE PINES.

Mayor Ortis presented a proclamation to Mr. James Ryan.

Mr. Ryan expressed thanks to the Commission for the honor.

Vice Mayor Good, Commissioner Siple, and Commissioner Schwartz acknowledged Mr. Ryan's wife Mary Ann and thanked Mr. James Ryan for all his years of service on various City of Pembroke Pines boards and committees.

Mayor Ortis acknowledged Ms. Nancy Armstrong and Ms. Rosalie Labate, who were present in the Commission Chambers.

ANNOUNCEMENT OF ITEMS TO BE PULLED FROM AGENDA

The Clerk declared no items pulled.

ITEMS AT THE REQUEST OF THE PUBLIC

Charles Raether, 11819 SW 13th Court, Pembroke Pines, FL addressed the Commission regarding changes to the recycling program

starting in January 2022.

ANNOUNCEMENT OF BOARD AND COMMITTEE APPOINTMENTS

BA-1 21-1115 **[ADDENDUM]** BOARD ANNOUNCEMENT BA-1: ANNOUNCEMENT OF BOARD AND COMMITTEE APPOINTMENT: COMMISSIONER SIPLE WISHES TO ANNOUNCE THE APPOINTMENT OF MR. CARLOS BRITO TO THE BOARD OF ADJUSTMENT FOR DISTRICT 3.

Commissioner Siple appointed Mr. Carlos Brito to the Board of Adjustment as a regular board member for District 3.

Mr. Carlos Brito, 16157 NW 15th Street, Pembroke Pines, Florida, thanked the Commission.

CONSENT AGENDA:

1. 21-0695 MOTION TO APPROVE THE PURCHASE OF REPLACEMENT EQUIPMENT FOR THE USE OF CITY UTILITIES FUNCTION SOURCING CONTRACTOR, OMI, WHICH HAS BECOME OBSOLETE OR HAS REACHED THE END OF IT'S USEFUL LIFE INCLUDING ONE (1) 2023 F750 REGULAR CAB DUMP TRUCK FROM PALMETTO FORD OF MIAMI IN THE AMOUNT NOT TO EXCEED $90,368, AND ONE (1) CATERPILLAR 303 HYDRAULIC EXCAVATOR FROM KELLY TRACTOR CO. IN THE AMOUNT NOT TO EXCEED $43,560, UTILIZING THE FLORIDA SHERIFF'S ASSOCIATIONS (FSA) FSA20-VEH18.0 AND FSA20-EQU18.0, PURSUANT TO SECTIONS 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

3. 21-1058 MOTION TO APPROVE AN AGREEMENT WITH AXON ENTERPRISE, INC. (AXON) FOR CURRENT BODY-WORN CAMERAS (BWC), INVESTIGATIONS DIVISION INTERVIEW ROOMS, DIGITAL EVIDENCE MANAGEMENT SOFTWARE, ACQUIRE ADDITIONAL BODY-WORN CAMERA SYSTEMS/ACCESSORIES, UPDATE ELECTRONIC CONTROL DEVICES (TASERS) AND ACQUISITION OF SWAT DRONE SOFTWARE, FOR A TOTAL AMOUNT NOT TO EXCEED $3,109,021.30 OVER A FIVE YEAR PERIOD, PURSUANT TO SECTION 35.18(C)(3) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

4. **21-1090** MOTION TO AWARD IFB # RE-21-02 "STEVEN L. JOSIAS DOG PARK PARKING LOT EXPANSION AND DRAINAGE IMPROVEMENTS" TO THE MOST RESPONSIVE/RESPONSIBLE BIDDER, WEEKLY ASPHALT PAVING, INC. IN THE AMOUNT NOT TO EXCEED $293,372.57, WHICH INCLUDES THE COST TO PROVIDE A PAYMENT AND PERFORMANCE BOND IN THE AMOUNT OF $3,774.57 AND AN OWNER'S CONTINGENCY IN THE AMOUNT OF $10,000.

A motion was made to approve on the Consent Agenda

5. **21-1093** MOTION TO APPROVE THE PURCHASE OF ONE (1) HORTON RESCUE TRUCK FROM THE SOLE SOURCE VENDOR, EMERGENCY TACTICAL RESCUE VEHICLES, IN THE AMOUNT NOT TO EXCEED $347,179, PURSUANT TO SECTION 35.18(C)(3) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

6. **21-1107** **MOTION TO APPROVE THE DEPARTMENT RECOMMENDATIONS FOR THE FOLLOWING ITEMS LISTED ON THE CONTRACTS DATABASE REPORT:**

(A) CI Technologies, Inc. - IAPro & Blue Team Software - Annual Review

(B) Toshiba America Business Solutions, Inc. - Multi-Function Products (Printers/Copiers) - Renewal

ITEM (C) WILL EXPIRE WITH NO RENEWAL TERMS AVAILABLE, THEREFORE, NO COMMISSION ACTION IS REQUIRED AS IT IS PRESENTED FOR NOTIFICATION PURPOSES ONLY PURSUANT TO SECTION 35.29 (F) OF THE CITY'S PROCUREMENT CODE:

(C) Ford & Associates, Inc. - Financial Advisory Services for Debt Management -
Non-Renewal

A motion was made to approve on the Consent Agenda

8. **21-1100** MOTION TO APPROVE REQUEST TO ADVERTISE SOLICITATION(S):

(A) AD-21-05 "ON SITE BACK SCANNING"
(B) PSPW-21-10 “DIGITAL SIGNAGE FABRICATION & INSTALLATION AT VARIOUS CHARTER SCHOOLS”

A motion was made to approve on the Consent Agenda

9. 21-1101 MOTION TO APPROVE THE SOLE SOURCE PURCHASE OF TWO (2) VIGILANT LICENSE PLATE READER (LPR) TRAILER RETROFIT KITS FROM VETTED SECURITY SOLUTIONS, IN AN AMOUNT NOT TO EXCEED $53,100, PURSUANT TO SECTION 35.18(C)(3) OF THE CITY’S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

11. 21-1110 MOTION TO APPROVE AMENDMENT 001 FOR CONTRACT JB8311F-10-2021 BETWEEN THE CITY OF PEMBROKE PINES/SOUTHWEST FOCAL POINT SENIOR CENTER AND THE AREAWIDE COUNCIL ON AGING OF BROWARD COUNTY, INC.

A motion was made to approve on the Consent Agenda

12. 21-1074 MOTION TO APPROVE THE REGULAR COMMISSION MEETING MINUTES OF NOVEMBER 17, 2021.

A motion was made to approve on the Consent Agenda

13. 21-1113 MOTION TO APPROVE THE REGULAR COMMISSION MEETING MINUTES OF DECEMBER 1, 2021.

A motion was made to approve on the Consent Agenda

14. 21-1059 MOTION TO AWARD IFB # TS-21-09 "CHROMEBOOK CARTS, COMPUTERS, CAMERAS, AND PROJECTORS FOR CHARTER SCHOOLS” IN THE FOLLOWING AMOUNTS TO THE MOST RESPONSIVE/RESPONSIBLE BIDDERS SHOWN BELOW:

ADORAMA CAMERA NOT TO EXCEED $39,163.10
MVATION WORLDWIDE INC. NOT TO EXCEED $48,300.00
OFFICE DEPOT NOT TO EXCEED $53,922.31
EARTHWALK COMMUNICATIONS INC. NOT TO EXCEED $30,240.00
AVI-SPL LLC NOT TO EXCEED $24,225.00

A motion was made to approve on the Consent Agenda

Approval of the Consent Agenda

A motion was made by Commissioner Schwartz, seconded by Commissioner Siple, to approve the Consent Agenda. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Good Jr., Castillo, Siple, and Schwartz

Nay 0

2. 21-1022 MOTION TO AWARD IFB # PSPW-21-03 "PARKING LOT MODIFICATIONS AT VARIOUS CHARTER SCHOOLS" TO THE MOST RESPONSIVE/RESPONSIBLE BIDDER, KALEX CONSTRUCTION & DEVELOPMENT INC., IN THE AMOUNT NOT TO EXCEED $654,824.23, WHICH INCLUDES AN OWNER'S CONTINGENCY IN THE AMOUNT OF $59,529.48.

A motion was made by Commissioner Siple, seconded by Commissioner Schwartz, to approve Item 2 to Award IFB # PSPW-21-03 "Parking Lot Modifications at Various Charter Schools" to the most responsive/responsible bidder, Kalex Construction & Development Inc., in an amount not to exceed $654,824.23, which includes an Owner's Contingency in the amount Of $59,529.48. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Good Jr., Castillo, Siple, and Schwartz

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

Commissioner Siple read Item 2 into the record, by title and spoke on the item.

6(B) 21-1107 **MOTION TO APPROVE THE DEPARTMENT RECOMMENDATIONS FOR THE FOLLOWING ITEMS LISTED ON THE CONTRACTS DATABASE REPORT:**

(A) CI Technologies, Inc. - IAPro & Blue Team Software - Annual Review

(B) Toshiba America Business Solutions, Inc. - Multi-Function Products (Printers/Copiers) - Renewal

ITEM (C) WILL EXPIRE WITH NO RENEWAL TERMS AVAILABLE, THEREFORE, NO COMMISSION ACTION IS REQUIRED AS IT IS PRESENTED FOR NOTIFICATION PURPOSES ONLY PURSUANT TO SECTION 35.29 (F) OF THE CITY'S PROCUREMENT CODE:

(C) Ford & Associates, Inc. - Financial Advisory Services for Debt Management -
Non-Renewal

A motion was made by Commissioner Schwartz, seconded by Commissioner Siple, to approve as amended. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Good Jr., Castillo, Siple, and Schwartz

Nay 0

Commissioner Schwartz made an amended motion, seconded by Commissioner Siple, to direct the City Manager to work with Ford & Associates Financial Advisory Services for Debt Management, and bring back a term contract with fees before Commission. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Good Jr., Castillo, Siple, and Schwartz

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Item 6(B) into the record by title.

Commissioner Schwartz spoke on the item.

7. **21-1084** MOTION TO APPROVE THE WATER AND SEWER SERVICE AGREEMENT AS SUBMITTED BY VITAL PHARMACEUTICALS, INC. D/B/A/ BANG ENERGY LLC (BANG ENERGY) ON BEHALF OF SHERIDAN REAL ESTATE INVESTMENTS A, LLC TO PROVIDE UTILITY SERVICES AND TO AMEND THE SERVICE AMOUNT PASSED BY COMMISSION ON DECEMBER 9, 2020 TO AN AMOUNT NOT TO EXCEED 49,260 GALLONS PER DAY OF WATER AND 22,608 GALLONS PER DAY OF SEWER AND TO RESCIND THE REQUEST OF 1,337,986, GALLONS PER DAY OF WATER, ELIMINATING ANY CITY CONSUMPTIVE USE (CUP) PERMIT CONCERNS.

A motion was made by Vice Mayor Good Jr., seconded by Commissioner Siple, to approve the water and sewer agreement. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Good Jr., Castillo, Siple, and Schwartz

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

Vice Mayor Good read Item 7 into the record by title, and spoke on the item.

Jonathan Cooper, Utilities Director, addressed the Commission. He then called upon the representative of Bang Energy to address the reason for the changes to the service agreement.

Anabela Bello, Esquire for Bang Energy, addressed the questions of the Commission on behalf of the client.

City Attorney Goren clarified that the type of agreement with Bang Energy would be strictly service related.

10. **21-1108** MOTION TO APPROVE THE FINDINGS AND RECOMMENDATION OF THE EVALUATION COMMITTEE AND TO AWARD RFP # FN-21-01 “INDEPENDENT REVIEW OF THE ANNUAL ENERGY SAVING PROJECT MEASUREMENT AND VERIFICATION REPORTS” TO ENERGY RESOURCES INTEGRATION, LLC AND TO DIRECT THE CITY MANAGER TO NEGOTIATE A CONTRACT FOR SERVICES.

A motion was made by Vice Mayor Good Jr., seconded by Commissioner Siple, to approve the findings and recommendations of the Evaluation Committee and to award RFP # FN-21-01 “Independent Review of the Annual Energy Saving Project Measurement And Verification Reports” To Energy Resources Integration, LLC and to direct the City Manager to negotiate a contract for services. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Good Jr., Castillo, Siple, and Schwartz

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

Vice Mayor Good read Item 10 into the record by title, and spoke on the item.

Wilbert Santos, Deputy Finance Director, responded to the questions of the Commission on behalf of Lisa Chong, Finance Director.

City Manager Dodge responded to the questions of the Commission.

QUASI JUDICIAL CONSENT AGENDA:

ORDINANCES AND RESOLUTIONS:

SECOND READING ORDINANCES:

15. 2021-22 MOTION TO ADOPT PROPOSED ORDINANCE NO. 2021-22 ON SECOND AND FINAL READING.

PROPOSED ORDINANCE NO. 2021-22 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA, PURSUANT TO SECTION 8.03 OF THE CITY OF PEMBROKE PINES CHARTER, AUTHORIZING THE SALE OF APPROXIMATELY .13 ACRES OF UNIMPROVED REAL PROPERTY GENERALLY LOCATED US 27 AND SOUTH OF SHERIDAN STREET, TO OM SAKTHI TRUST LLC, SUBJECT TO THE TERMS AND CONDITIONS AS SET FORTH IN THE PURCHASE AND SALE AGREEMENT, ATTACHED HERETO AS EXHIBIT “A” AND INCORPORATED HEREIN BY REFERENCE; AUTHORIZING THE PROPER CITY OFFICIALS TO EXECUTE ALL NECESSARY DOCUMENTS; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

PROPOSED ORDINANCE NO. 2021-22 IS BEING DEFERRED TO THE JANUARY 12, 2022 CITY COMMISSION MEETING.

A motion was made by Vice Mayor Good Jr., seconded by Commissioner Siple, to defer the second reading of Proposed ordinance 2021-22 to the January 12, 2022 Commission Meeting. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Good Jr., Castillo, Siple, and Schwartz

Nay 0

Enactment No: 1980

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Proposed Ordinance 2021-22 into the record by title.

Mike Stamm, Planning and Economic Development Director, addressed the Commission pertaining to the reason for deferral until the January 12,

2022 Commission Meeting as requiring additional time. The item will be scheduled for SECOND second reading on January 12, 2022.

16. **2021-26** MOTION TO PASS PROPOSED ORDINANCE 2021-26 ON SECOND AND FINAL READING.

PROPOSED ORDINANCE 2021-26 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA, AMENDING CHAPTER 30 OF THE CITY'S CODE OF ORDINANCES, ENTITLED "MEETINGS;" BY SPECIFICALLY AMENDING SECTION 30.15, ENTITLED "AGENDA;" ESTABLISHING A CATEGORY ENTITLED "COMMISSION AUDITOR REPORT" ON THE AGENDA FOR EACH REGULAR MEETING OF THE CITY COMMISSION; PROVIDING FOR REPORTS BY THE COMMISSION AUDITOR; PROVIDING FOR CODIFICATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

A motion was made by Commissioner Schwartz, seconded by Commissioner Siple, to adopt Proposed Ordinance 2021-26. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Good Jr., Castillo, Siple, and Schwartz

Nay 0

Enactment No: 1979

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Proposed Ordinance 2021-26 into the record by title.

FIRST READING ORDINANCES:

17. **2021-29** MOTION TO PASS PROPOSED ORDINANCE 2021-29 ON FIRST READING.

PROPOSED ORDINANCE 2021-29 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA AMENDING THE CITY OF PEMBROKE PINES COMPREHENSIVE PLAN BY PROVIDING A TEXT AMENDMENT ADOPTING AND INCORPORATING A PROPERTY RIGHTS ADOPTION ELEMENT; PROVIDING FOR TRANSMITTAL OF CERTIFIED COPIES OF THIS ORDINANCE AND TRANSMISSION OF THE PROPERTY RIGHTS ADOPTION ELEMENT TO THE STATE OF FLORIDA DEPARTMENT OF ECONOMIC

OPPORTUNITY AND ANY OTHER INTERESTED GOVERNMENTAL ENTITIES; DIRECTING THE CITY MANAGER AND ALL APPROPRIATE MEMBERS OF THE CITY ADMINISTRATION TO TAKE ALL ACTION NECESSARY TO EFFECTUATE THE INTENT OF THIS ORDINANCE; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING AN EFFECTIVE DATE.

A motion was made by Commissioner Schwartz, seconded by Vice Mayor Good Jr., to pass Proposed Ordinance 2021-29 on First Reading . The motion carried by the following vote:

Aye 5 - Mayor Ortis, Good Jr., Castillo, Siple, and Schwartz

Nay 0

Enactment No: 1984

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Proposed Ordinance 2021-29 into the record by title.

Mike Stamm, Planning and Economic Director, responded to the questions of the Commission regarding the requirements for Comprehensive Plans.

City Attorney Goren responded to the questions of the Commission regarding the rights of property owners.

18. **2021-30** MOTION TO PASS PROPOSED ORDINANCE NO. 2021-30 ON FIRST READING

PROPOSED ORDINANCE NO. 2021-30 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA, AMENDING CHAPTER 155, THE LAND DEVELOPMENT CODE OF THE CITY OF PEMBROKE PINES, BY AMENDING SECTION 155.401, ENTITLED “ZONING MAP,” TO AMEND THE CITY’S ZONING DISTRICT MAP TO RE-ZONE AN APPROXIMATE 2-ACRE PARCEL OF LAND GENERALLY LOCATED ON THE SOUTHEAST CORNER OF PINES BOULEVARD AND 72 AVENUE, AS MORE PARTICULARLY DESCRIBED IN EXHIBIT “A”; RE-ZONING FROM THE CURRENT ZONING OF A (AGRICULTURAL) TO B-3 (GENERAL BUSINESS); PROVIDING FOR CODIFICATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

SECOND AND FINAL READING IS TENTATIVELY SCHEDULED FOR FEBRUARY 2, 2022

A motion was made by Vice Mayor Good Jr., seconded by Commissioner Siple, to pass proposed Ordinance 2021-30 on First Reading. Second and final reading is tentatively scheduled for February 2, 2022. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Good Jr., Castillo, Siple, and Schwartz

Nay 0

Enactment No: 1983

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Proposed Ordinance 2021-30 into the record by title.

Vice Mayor Good spoke on the item.

RESOLUTIONS:

19. **2021-R-58**

MOTION TO ADOPT PROPOSED RESOLUTION 2021-R-58

PROPOSED RESOLUTION 2021-R-58 IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, APPROVING THE PROGRAM YEAR 2020 CONSOLIDATED ANNUAL PERFORMANCE EVALUATION REPORT (CAPER) FOR COMMUNITY DEVELOPMENT BLOCK GRANT PROGRAMS; PROVIDING FOR RECORDATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE.

PUBLIC HEARING REQUIRED

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to adopt Proposed Resolution 2021-R-58. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Good Jr., Castillo, Siple, and Schwartz

Nay 0

Enactment No: 3782

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Proposed Resolution 2021-R-58 into the record by title.

REGULAR AGENDA:

REPORTS OF LEAGUE REPRESENTATIVES

REPORTS OF THE CITY MANAGER AND CITY ATTORNEY

COMMISSION ITEMS:

NEW BUSINESS:

OLD BUSINESS:

ADJOURN - 7:46 P.M.

CITY OF PEMBROKE PINES

Marlene D. Graham, CMC
City Clerk